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LINE 9

24-CIV-06622

HAMID JARIBEAN, ET AL. VS. GEORGE RUNCIE, ET AL.

HAMID JARIBEAN
GEORGE RUNCIE

PRO SE
STEVEN R. ROESER

MOTION OF CROSS-DEFENDANT HAMID JAREBEAN TO SET ASIDE ENTRY OF DEFAULT

TENTATIVE RULING:

The court DENIES plaintiff/cross-defendant Hamid Jaribean's (plaintiff) motion to set aside a default entered against him in this matter. Defendants George and Nathalie Runcie have opposed the motion.

Defendants' Request for Judicial Notice of is GRANTED.

Plaintiff, then-represented by attorney Reshma Kamath, filed his complaint on October 24, 2024. On December 6, 2024, defendants filed and served their cross-complaint against plaintiff and co-plaintiff HR Construction & Remodeling. On October 21, 2025, the court entered a default against plaintiff. On November 8, 2025, Ms. Kamath's license to practice law was declared inactive by the State Bar. (RJN, Ex. A., State Bar Attorney Profile, License Status.) On April 24, 2026, more than six months after default was filed, plaintiff filed a notice of substitution of attorney – signed November 20, 2025 – substituting Ms. Kamath out and proceeding in pro per. Also on April 24, 2026, plaintiff filed the instant motion to set aside default, for which the proof of service was electronically signed by Ms. Kamath. On June 26, 2026, Ms. Kamath was disbarred.

The law favors judgments based on the merits, not procedural missteps. Our Supreme Court has repeatedly reminded us that in this area doubts must be resolved in favor of relief, with an order denying relief scrutinized more carefully than an order granting it. “As Justice Mosk put it in *Rappleyea [v. Campbell]* (1994) 8 Cal.4th 975] Because the law favors disposing of cases on their merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default [citations].” (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134–135 [internal quotations omitted].)

However, in most instances, the law also sets deadlines for motions for relief from default and in all circumstances established rules to obtain relief from default.

Plaintiff argues that the default should be set aside because no summons was ever served. This argument fails because plaintiff was already a party to the case, having filed the initial complaint. For represented parties who have appeared, a cross-complaint shall be served upon the party's attorney in the same manner provided for notices during litigation of the case. (Code Civ. Proc., § 428.60, subd. (2).) The cross-complaint was served on the attorney of record by email.

Similarly for the same reason, the entry of default is not void because there was proper service of the cross-complaint and legally sufficient service supporting default. It was proper for cross-complainant to serve plaintiff's counsel by email.

While the best practice is for counsel to provide notice before default is entered, plaintiff acknowledges that his counsel received notice of the request for entry of default, and neither plaintiff's counsel or plaintiff took any action for more than six months after the cross-complaint. At the time of default, the cross-complaint had been pending ten months (defendants served the cross-complaint on December 6, 2024, and default was not entered until October 21, 2025.)

Plaintiff suggests that the court can grant equitable relief based upon his attorneys' status. There is case law which allows such relief. (See e.g. *Moghaddam v. Bone* (2006) 142 Cal.App.4th 283, 290; *People v. One Parcel of Land* (1991) 235 Cal.App.3d 579, 584; *Orange Empire Nat. Bank v. Kirk* (1968) 259 Cal.App.2d 347, 354, but see *Kendall v. Barker* (1988) 197 Cal.App.3d 619, 625-626.)

If plaintiff believes that he has facts to support this court granting relief based upon attorney misconduct, he should properly contest the tentative ruling and make an offer of proof of these facts at the hearing. The court will then consider continuing the hearing and allowing for further briefing. If the tentative ruling is not properly contested or if a proper offer of proof is not made, then the motion is denied.

If the tentative ruling is uncontested, it shall become the order of the court as the motion being denied. Thereafter, counsel for defendant/cross-complainant shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 10

25-CIV-06341

MOJTABA TAIEBAT VS. ANDREW G WATTERS

MOJTABA TAIEBAT
ANDREW G WATTERS

MICHAEL TSIVYAN
JERAMY STEPHEN STONE

DEMURER OF CROSS-DEFENDANT MICHAEL TSIVYAN

TENTATIVE RULING:

For the reasons stated below, Cross-defendant Michael Tsivyan's Demurrer to the Third Cause of Action in Andrew Watters' March 9, 2026 Cross-Complaint is SUSTAINED without leave to amend. (Code Civ. Proc. § 430.10, subd. (e).)

WATTERS' REQUEST FOR JUDICIAL NOTICE (RJN) IS DENIED

Watters' July 22, 2026 request for judicial notice (RJN) seeks judicial notice of a number of court rulings in *Marzieh Abdolyousefi et al vs. Mojtaba Taiebat et al*, Case No. 22CV398906, venued in the Santa Clara County Superior Court). The RJN attaches a copy of the case docket, but no other documents, including any court orders, are attached.

The party requesting judicial notice bears the burden of furnishing the court with sufficient information to enable it to take judicial notice. Merely identifying another case by name and case number is not sufficient where, as here, the party is asking the Court to recognize specific rulings or orders. It is not this Court's obligation to track down a laundry list of court orders from a case filed in Santa Clara County. Generally, the party requesting judicial notice should attach, as exhibit, any documents that it wishes this Court to review, rather than merely identifying a hyperlink to another court's docket. Further, here, the hyperlink does not appear to function.

The Court notes, however, that the RJN has had no bearing on the Court's ruling on the demurrer.

INSUFFICIENT MEET AND CONFER

Tsivyan's meet and confer declaration does not comply with Code of Civil Procedure section 430.41, which requires the demurring party to "meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer ..." (*id.*, § 430.41, subd. (a).) The statute requires the demurring party make *a genuine attempt to speak with the opposing side*. It does not suffice to send an email inviting the opposing attorney to initiate a call. In this case, Tsivyan sent an email and Watters' counsel failed to respond.

However, the failure to sufficiently meet and confer is not grounds to overrule or sustain a demurrer. (Code Civ. Proc., § 430.41, subd. (a)(4); *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355.)
